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Case Number: 24SMCV04829 Hearing Date: June 25, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

June 25, 2026

CASE NUMBER

24SMCV04829

MOTIONS

Demurrer without Motion to Strike

MOVING PARTY

Defendant Augustine Temperature Management, LLC

OPPOSING PARTY

Plaintiffs Niloo Cannon and William Cannon

MOTIONS

This case arises from allegations that Plaintiff Niloo Cannon suffered burns from a warming mattress during surgical procedures performed on or about May 18, 2024.

On February 11, 2026, Plaintiffs Niloo Cannon and William Cannon (“Plaintiffs”) filed the operative Fifth Amended Complaint (“5AC”) against Defendants Jason Emer, M.D. (“Emer”); Yoel A. Rojas Ortiz, M.D. (“Ortiz”); Sean S. Ravaei (“Ravaei”); Soma Surgery Center, Inc. (“SOMA”); Augustine Temperature Management, LLC (“Augustine” or “Defendant”); Andrea Shankar, CRNA (“Shankar”); and DOES 1 through 50 (“DOES”) alleging ten causes of action for (1) professional negligence; (2) loss of consortium; (3) intentional misrepresentation; (4) negligent misrepresentation; (5) intentional infliction of emotional distress; (6) professional negligence; (7) strict products liability – design defect; (8) strict products liability – manufacturing defect; (9) strict products liability – failure to warn; and (10) negligent products liability.

Defendant Augustine now demurs to the seventh, ninth, and tenth causes of action on the grounds that Plaintiffs fail to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). For the ninth and tenth causes of action for failure to warn, Defendant also demurs on the

grounds that this Court lacks jurisdiction over the claim pursuant to Code of

Civil Procedure section 430.10, subdivision (a).

Specifically, for the strict product liability design defect claim

(seventh cause of action), Defendant argues that California law "prohibits design

defect claims for surgical aids that can be obtained only from a

physician." (Demurrer at 1:10-11.) Defendant also demurs to the strict product

liability failure to warn and negligent product liability claims, the ninth and

tenth causes of action respectively, "because the claims are impliedly

preempted by federal law." (Id. at 1:11-12.)

Defendant requests judicial notice of Exhibits A and B and opposes any

leave to amend for the three causes of action if the demurrer is sustained. Plaintiffs address these requests in the

Opposition to Demurrer, but have not filed a separate Opposition to Judicial

Notice.

Plaintiffs oppose the Demurrer and request leave to amend if the

demurrer to the three causes of action is sustained. Defendant replies.

REQUEST

FOR JUDICIAL NOTICE

Defendant Augustine requests

judicial notice of the following:

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Exhibit A: document showing FDA approval for Augustine's

150(k) application for the HotDog warming system, which includes both mattress

and controller, from the fda.gov website. (See Pole Dec., Ex. A [FDA's 510(k) Premarket

Notification of Approval].)

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Exhibit B: the digital download from Augustine's

website, which is available and accessible to the public. (See Pole Dec., Ex. B.)

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Defendant also requests that, based on both

Exhibit A's 510(k) approval and the "RX Only" found on Exhibit B, the Court

take judicial notice pursuant to California Evidence Code sections 452 and 453 that

the HotDog warming system is available only through a physician. (See Pole Dec. at 2, Ex. A, Ex. B.)

The

Court grants in part and denies in part Defendant's request for judicial

notice.

"The trial court shall take

judicial notice of any matter specified in Section 452 if a party requests it

and: (a) Gives each adverse party sufficient notice of the request, through the

pleadings or otherwise, to enable such adverse party to prepare to meet the

request; and (b) Furnishes the court with sufficient information to enable it

to take judicial notice of the matter.”

(Evid. Code, § 453.)

The Court takes judicial

notice of the existence of FDA 510(k) approval for the HotDog Patient Warming

Mattress System issued on December 10, 2009 based on the product’s substantial

equivalence to a predicate device. (Pole

Dec., Ex. A; see

Intengan v. BAC Home Loans Servicing LP (2013) 214 Cal.4th 1047, 1057.) The FDA’s Premarket Notification of Approval constitutes an official act

of a federal executive agency and is subject to judicial notice under Evidence

Code section 452, subdivision (c). Official

acts under that subdivision include records, reports, and orders of

administrative agencies. (Rodas v.

Spiegel (2001) 87 Cal.App.4th 513, 518.)

Judicial notice of

an official document includes “facts that can be deduced, and/or clearly

derived from, its legal effect, such as the names and dates contained in the document,

and the legal consequences of the document.” (Julian

Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist. (2021)

62 Cal.App.5th 583, 600.)

Evidence Code section 1552,

subdivision (a) creates a presumption that a printed representation of computer information is an authentic representation of the information it purports to represent. The Court does not, however, take judicial notice of the truth of the allegations contained therein, regardless of established authenticity under Section 1552. (See *Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134 ["judicial notice of the official acts of a governmental entity does not in and of itself require acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom"].)

The Court does not take

judicial notice of the existence of Exhibit B of the Pole Declaration filed in

this matter. Defendant Augustine requests the Court take judicial notice of the

fact that "RX Only" on the document downloaded from its own website

demonstrates that the system is only available through a physician. The contents on a company's website do not presumptively

constitute sources of reasonably indisputable accuracy. (See *Jolley v. Chase Home Finance, LLC*

(2013) 213 Cal.App.4th 872, 889 [holding that because California has no

"official Web site" provision for judicial notice, contents on internet sites may

be “reasonably subject to dispute”]; Ragland v. U.S. Bank National Assn. (2012)

209 Cal.App.4th 182, 193-94 [“The contents of the Web sites and blogs are

‘plainly subject to interpretation and for that reason not subject to judicial

notice’ ” quoting L.B. Research & Education Foundation v. UCLA

Foundation (2005) 130 Cal.App.4th 171, 180, fn.2].)

Furthermore, the request by Defendant

that the Court take notice of the HotDog system being available only through a

physician is a factual assertion that is reasonably subject to dispute and thus

requires formal proof. (See Lockley v.

Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91

Cal.App.4th 875.) “While courts are free

to take judicial notice of the existence of each document in a court file,

including the truth of results reached, they may not take judicial notice of

the truth of hearsay statements in decisions and court files. Courts

may not take judicial notice of allegations in affidavits, declarations and

probation reports in court records because such matters are reasonably subject

to dispute and therefore require formal proof.” (Id. at p.

882 [cleaned up].)

Here, the “RX Only” designation is a hearsay

statement whose truth and legal significance is contested in this matter. (Opposition at 14:9-24.) Thus, Exhibit B is reasonably subject to

dispute because it is incapable of an immediate and accurate determination through sources of reasonably indisputable accuracy.

As such, the Court takes

judicial notice of the existence and legal effect of Exhibit A as an official act, but not the absolute truth of the matters asserted therein, but denies judicial notice of Exhibit B and of the proposition that the HotDog warming system is available only through a physician.

ANALYSIS

1. DEMURRER

“It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer,

however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe”

the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., §

452.) “This rule of liberal construction

means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as

against the demurrer on the ground that it does not state facts sufficient to

constitute a cause of action, the rule is that if on consideration of all the

facts stated it appears the plaintiff is entitled to any relief at the hands of

the court against the defendants the complaint will be held good although the

facts may not be clearly stated, or may be intermingled with a statement of

other facts irrelevant to the cause of action shown, or although the plaintiff

may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193

Cal.App.2d 636, 639.)

A. FAILURE TO STATE A CAUSE OF ACTION

i.

Seventh

Cause of Action – Strict Products Liability – Design Defect

A strict product liability

action requires Plaintiffs to establish that the product or instrumentality

that caused the injury is legally defective.

(Weil & Brown, Cal. Practice Guide: Personal Injury (The Rutter

Group 2026) ¶ 2:1215, p. 134.) A product

may be perfectly manufactured but legally defective due to a flawed design,

such as the absence of a safety device.

(Barker v. Lull Eng'g Co., Inc. (1978) 20 Cal.3d 413, 429

(hereafter Barker); Webb v. Special Elec. Co., Inc. (2016) 63

Cal.4th 167, 180; Brown v. Superior Court (1988) 44 Cal.3d 1049, 1057 (hereafter Brown).)

“Strict liability may be

invoked to allege three types of product defects: (1) manufacturing defects,

(2) design defects, and (3) warning[.]”

(Williams v. J-M Manufacturing Co., Inc. (2024) 102 Cal.App.5th

250, 256.) “Design defects appear in

products that, although properly manufactured, are dangerous because they lack

a critical feature needed to ensure safe use.

(Id. at p. 257.)

The two alternative tests to

establish strict liability for a design defect are the (1) "consumer

expectation" and (2) "risk-benefit" tests.

(Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 563-64; see Barker,

supra, 20 Cal.3d at p. 432.) "A

product design may be found defective if: (1) the product failed to perform as

safely as an ordinary consumer would expect when used in an intended or

reasonably foreseeable manner (consumer expectations test); or (2) the risk of

danger inherent in the product's design outweighs the design's benefits

(risk-benefit test)" (Webb v. Special

Electric Co., Inc. (2016) 63 Cal.4th 167, 180 [cleaned up].)

Here, Plaintiffs allege in the

5AC:

13. On or

about May 18, 2024, NILOO CANNON underwent common liposculpture and thigh lift

procedures of her thighs, among other surgical procedures. Doctors JASON EMER,

M.D. and/or YOEL A ROJAS ORTIZ M.D. performed the surgeries at SOMA SURGERY

CENTER.

14. On

information and belief, ANDREA SHANKAR, CRNA provided intraoperative anesthesia

care and monitoring during the procedure, including monitoring of the anesthetized patient and coordination with the surgical team regarding patient safety issues arising during the operation.

On information and belief, as part of her anesthesia responsibilities, ANDREA SHANKAR, CRNA participated in and/or had responsibility for patient safety measures and monitoring that included the use of patient-warming equipment (including the HotDog Warming System), confirming and/or coordinating its safe use on an anesthetized patient, monitoring for and responding to unsafe conditions, alarms, and/or fault indications during the procedure, and communicating and escalating safety concerns to the surgical team and facility staff as necessary.

15. The

HotDog U102 mattress was manufactured and sold by Defendant AUGUSTINE TEMPERATURE MANAGEMENT, LLC.

16.

During the May 18, 2024 procedure, the HotDog Warming System (including a HotDog U102 underbody warming mattress and associated controller and/or components) was used on and/or beneath Plaintiff NILOO CANNON for the purpose of maintaining body temperature while she was anesthetized, immobile, and unable to perceive or report excessive heat or injury.

17. On or

about May 18, 2024, during Plaintiff NILOO CANNON's procedures at SOMA SURGERY

CENTER, INC., she was positioned on a HotDog® U102 patient warming mattress

that was owned, selected, maintained, and controlled by Defendants SOMA SURGERY

CENTER, INC. and its Medical Director and owner, Defendant SEAN S. RAVAEI, M.D.

During the surgery and immediately thereafter, this warming mattress

malfunctioned and overheated, causing Plaintiff to sustain extreme and severe

thermal burns to her right thigh.

18. After

the subject surgeries were completed, NILOO CANNON presented with extreme and

severe burns to her right thigh. Plaintiffs allege that the thermal burn injury

was caused by heat transferred from the HotDog Warming System during the

operative period and/or by continued use of the system under unsafe conditions,

including conditions involving alarms, fault indications, and/or error codes,

and without adequate safeguards to prevent foreseeable thermal injury to

anesthetized patients.

19. Said

Defendants, and each of them, individually and by and through their employees

and agents, undertook the employment and agreed to diagnose NILOO CANNON and to

care for and treat NILOO CANNON and do all things necessary and proper in

connection therewith.

20.

After the subject surgeries were completed, NILOO CANNON presented with extreme and severe burns to her right thigh.

[...]

22.

On May 17, 2024, the day before Plaintiff's procedure, another patient at Soma Surgery Center (Zain Jamal) underwent surgery while lying on the same HotDog U102 warming mattress and sustained a burn injury to her thigh.

[...]

24.

As a proximate result of the aforementioned negligence, NILOO CANNON has suffered severe physical and mental injuries, including but not limited to the following: severe pain and suffering, permanent scarring, and mental and emotional distress.

25.

NILOO CANNON'S injuries will result in permanent disfigurement and disability to NILOO CANNON, all to her damage in an amount to be set forth in accordance with Code of Civil Procedure section 425.11.

[...]

27.

Plaintiff is informed and believes and thereon alleges that, before her May 18, 2024 surgery, Defendants SOMA SURGERY CENTER, INC. and SEAN S. RAVAEI, M.D., acting as SOMA's owner, Medical Director, officer, director, and managing agent, had been repeatedly notified by the device manufacturer, Augustine Temperature Management, LLC, that the HotDog® U102 patient warming mattress being used at SOMA had reached its expiration date, was damaged, and had been generating "E2" hardware error codes and alarms during use. Augustine advised SOMA and Dr. RAVAEI that the device should be removed from service and replaced and warned that continued use of an expired, damaged, and alarming warming mattress created a risk of patient burns, particularly when used on tissue with reduced perfusion and in the presence of vasoconstrictive drugs.

28.

Plaintiff is further informed and believes and thereon alleges that, despite these explicit warnings, Defendants SOMA SURGERY CENTER, INC. and SEAN S. RAVAEI, M.D. consciously chose not to remove the defective HotDog® U102 warming mattress from their operating rooms because doing so would have required them to purchase a replacement, and instead directed that it continue to be used on SOMA patients, including Plaintiff. In addition, SOMA and Dr. RAVAEI failed to implement or enforce any policies requiring that malfunctioning or alarming

patient-warming devices be taken out of service and failed to train staff to

promptly remove such devices from use when error codes appeared.

29.

Plaintiff is further informed and believes and thereon alleges that, on May 17,

2024- the day before Plaintiff's procedure- another patient at SOMA SURGERY

CENTER underwent surgery while lying on the same HotDog® U102 warming mattress

and sustained a burn injury to his thigh. The incident was reported to SOMA

personnel and to Defendant SEAN S. RAVAEI, M.D., who was informed that the

device had malfunctioned and alarmed during that procedure and that the patient

had been burned. Despite this prior incident and their actual knowledge of it,

SOMA and Dr. RAVAEI allowed the same defective, expired, and alarming warming

mattress to remain in use and to be used again on Plaintiff the very next day,

in conscious and deliberate disregard of the safety of Plaintiff and other SOMA

patients.

[...]

97.

Defendant Augustine Temperature Management, LLC designed, manufactured,

distributed and sold the HotDog U102 patient-warming mattress used during

Plaintiff's surgery.

98.

The HotDog U102 patient-warming mattress contained a design defect at the time it left Defendant Augustine's possession.

99.

The HotDog U102 was designed in such a way that it could overheat and cause burns to patients even when used in a reasonably foreseeable manner.

100.

The HotDog U102 mattress failed to incorporate adequate safety features to prevent overheating when the product was expired, damaged, or when error codes were generated.

101.

The HotDog U102 mattress was used in a reasonably foreseeable manner.

102.

The mattress was used for its intended purpose of warming patients during surgical procedures, which is a reasonably foreseeable use of the product.

103.

Plaintiff was harmed by suffering severe burns to her right thigh.

104.

The design defect in the HotDog U102 mattress was a substantial factor in causing Plaintiff's harm.

105.

The design of the HotDog U102 mattress allowed it to continue operating and to overheat despite being expired, damaged, and generating error codes, which directly led to Plaintiff's burn injuries.

(5AC ¶¶ 13-20, 22, 24-25, 27-29 [factual

background]; 97-105 [strict product liability – design defect].)

Thus,

Plaintiffs have alleged the warming mattress was designed in a manner that causes harm when used in a reasonably foreseeable manner, consistent with the consumer expectations test.

Defendant Augustine argues

that the HotDog U102 mattress system is exempt from strict design defect liability claims under California law because the device "can be obtained only from a physician."

"[I]n exceptional cases,

overriding public policy precludes imposing design defect strict liability as

a matter of law." (Weil & Brown, Cal. Practice Guide: Personal Injury

(The Rutter Group 2026) ¶ 2:1226.) The

public policy considerations for such determinations "depend[] on whether the public interest

would be served by the imposition of such liability." (Brown,

supra, 44 Cal.3d at p. 1062.)

In *Brown*, the California

high court reasoned that with prescription drugs, “unlike other important medical products

(wheelchairs, for example), harm to some users from prescription drugs is

unavoidable. (*Brown*, *supra*, 44 Cal.3d at p. 1063.) Because of these distinctions, the broader

public interest in the availability of drugs at an affordable price must be

considered in deciding the appropriate standard of liability for injuries

resulting from their use.” (*Ibid.*) Each case

in the *Brown* line involves a medical product that is selected for a

specific patient based on a physician’s individualized medical

determination(s). (See *Brown* [prescription

drug]; *Hufft v. Horowitz* (1992) 4 Cal.App.4th 8 (hereafter *Hufft*)

[penile prosthesis] ; *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349

[intrauterine device]; *Artiglio v. Superior Court* (1994) 22 Cal.App.4th

1388 [breast implants]; *Garrett v. Howmedica Osteonics Corp.* (2013) 214

Cal.App.4th 173 [prosthetic femur replacement].)

Defendant additionally cites

to *Armstrong v. Optical Radiation Corp.*, which extended the strict

liability exemption under California law to a Class III non-implanted surgical

aid—Orcolon, a “thick, transparent jelly-like fluid” used during an intraocular

lens implantation. (*Armstrong*

v. Optical Radiation Corp. (1996) 50 Cal.App.4th 580, 583 (hereafter Armstrong);

Demurrer at 3:11-14.) In Reply,

Defendant expands on this argument and contends Armstrong extended the

strict liability exemption established under Brown for design defect

claims to all surgical aids. (Reply at

4:15-19.)

While Armstrong states,

“California law precludes strict liability for a design defect in a

medical device,” (Armstrong, *supra*, 50 Cal.App.4th at p. 595, citing

Hufft, *supra*, 4 Cal.App.4th at pp. 13-20), Hufft actually

distinguished between medical devices for which the exemption applies and those

for which it did not. “When distinctions

are made among medical products, implanted medical devices must be placed in a

category with prescription drugs, not wheelchairs or other important items that

are of comfort or assistance to patients, but do not become an integrated part

of the person.” (Hufft, *supra*, 4 Cal.App.4th at pp. 18-19, citing

Brown, *supra*, 44 Cal.3d at p. 1063.))

In addition to cases

demonstrating that the Brown exemption applies to prescription drugs,

implanted medical devices, medical prostheses, and a surgical aid jelly

available only through the services of a physician, Defendant cites to Trejo v. Johnson & Johnson (2017) 13 Cal.App.5th 110, where the Court of Appeal held that the Brown exemption did not apply to over-the-counter medications, on the ground that “[a] necessary predicate of Brown’s public policy analysis ... is intervention of a physician between the manufacturer and the patient.” (Id. at p. 146.)

Thus, Defendant argues, because the warming pad is only applied to the patient by a physician during surgery, that same intervention of a physician exists between the manufacturer and patient, and as such, Defendant should be similarly insulated from design defect strict liability. (Demurrer at 3:20-21; Reply at 4:21-5:2.)

But as discussed above, because the Court denies judicial notice of Exhibit B and the proposition that the warming pad is only available through a physician, the premise upon which Defendant’s exemption argument is based—that the warming pad at issue is a surgical aid only available through a physician—falls outside the four corners of the Complaint and therefore cannot form the basis to sustain a demurrer.

Defendant also argues that, according to Himes v. Somatics, LLC., a prescription drug or medical

device manufacturer “fulfills its general duty of care owed to the patient by providing an adequate warning to the patient’s physician” who “acts as a learned intermediary between the manufacturer and the patient.” (Himes v. Somatics, LLC. (2024) 16 Cal.5th 209, 222.) But, Himes is a failure to warn case, not a design defect case. Specifically, the learned intermediary doctrine involves the physician “recommending a course of treatment” based on the manufacturer’s warnings, “the physician’s own medical training and experience as well as the patient’s particular needs and risk factors.” (Ibid.) As such, the Court does not find Himes applicable to design defect claims.

Accordingly,

the Court overrules Defendant Augustine’s demurrer to the seventh cause of action.

i.

Ninth Cause

of Action – Strict Products Liability – Failure to Warn

“The failure to warn theory of

products liability is based on the premise that a product, although faultlessly

made, may nevertheless be deemed ‘defective’ under the rule and subject the

supplier thereof to strict liability if it is unreasonably dangerous to place

the product in the hands of a user without a suitable warning and the product

is supplied and no warning is given." (Trejo

v. Johnson & Johnson (2017) 13 Cal.App.5th 110, 125 [cleaned up].) "Whether the absence of a warning makes a

product defective involves several factors, including a consumer's normal

expectations of how a product will perform; degrees of simplicity or

complication in its operation or use; the nature and magnitude of the danger to

which the user is exposed; the likelihood of injury; and the feasibility and

beneficial effect of including such a warning."

(Ibid.)

The elements for a strict

liability failure to warn claim are (1) Defendant manufactured/distributed/sold

the product; (2) the product had risks that were known or knowable in light of

the scientific and medical knowledge that was generally accepted in the

scientific community at the time of the manufacture/distribution/sale; (3) the

potential risks presented a substantial danger when the product is used or

misused in an intended or reasonably foreseeable way; (4) ordinary consumers

would not have recognized the potential risks; (5) Defendant failed to

adequately warn of the potential risks; (6) the plaintiff was harmed; and (7)

the lack of sufficient instructions or warnings was a substantial factor in

causing the plaintiff's harm. (CACI No.

1205.)

Here, in addition to the

allegations above, Plaintiffs allege:

114. Defendant Augustine

Temperature Management, LLC manufactured, distributed, and sold the HotDog U102

patient-warming mattress used during Plaintiff's surgery.

115. The HotDog U102

patient-warming mattress had potential risks that were known or knowable in

light of scientific knowledge available at the time of manufacture,

distribution, and sale.

116. The risks included the

potential for the mattress to overheat and cause burns, particularly when the

product was expired, damaged, or when error codes were generated.

117. These potential risks

presented a substantial danger when the HotDog U102 mattress was used or

misused in a reasonably foreseeable way.

118. The risk of burns from an

overheating mattress presented a substantial danger to patients undergoing

surgery.

119. Ordinary consumers would

not have recognized the potential risks.

120. Medical professionals

using the HotDog U102 mattress would not have recognized the severity of the risk of burns from an expired or damaged mattress without adequate warnings.

121. Defendant Augustine

failed to adequately warn of the potential risks.

122. While Augustine provided

some warnings about expiration dates and error codes, these warnings were vague, insufficient, and failed to adequately communicate the dangers of using an expired or damaged product.

123. Augustine's Instructions

for Use (IFU) contained general warnings but did not provide clear, actionable guidance to ensure compliance by end-users such as Soma Surgery Center.

124. Plaintiff was harmed by

suffering severe burns to her right thigh.

125. The lack of sufficient

warnings was a substantial factor in causing Plaintiff's harm.

126. Had Augustine provided

clearer, more specific warnings about the dangers of using an expired, damaged mattress or overriding error codes, Soma Surgery Center would not have used the

mattress on Plaintiff, and she would not have suffered burn injuries.

(5AC ¶¶ 114-126.) The Court determines that Plaintiffs have

adequately stated a claim for strict liability – failure to warn. To the extent Defendant attempts to invoke

the learned intermediary doctrine with respect to the ninth cause of action for

failure to warn, whether Defendant adequately warned the physician is a factual

question to be resolved at later stages of the litigation.

As

such, the Court overrules Defendant's demurrer to the ninth cause of action.

ii.

Tenth Cause of Action – Negligent Failure to Warn

To establish a negligent

failure to warn claim, a plaintiff must plead, and ultimately prove “that a

manufacturer or distributor did not warn of a particular risk for reasons which

fell below the acceptable standard of care, i.e., what a reasonably prudent

manufacturer would have known and warned about.” (Johnson & Johnson Talcum Powder Cases

(2019) 37 Cal.App.5th 292, 314.) “A reasonable

manufacturer is not charged with knowing more than what would come to light

from the prevailing scientific and medical knowledge.” (Ibid.) Further, a manufacturer “has no duty to warn

of risks that are merely speculative or conjectural, or so remote and

insignificant as to be negligible.” (Ibid.)

The elements for the cause of

action are (1) defendant manufactured/distributed/sold the product; (2)

defendant knew or reasonably should have known the product was dangerous or

likely to be dangerous when used or misused in a reasonably foreseeable manner;

(3) defendant knew or reasonably should have known that users would not realize

the danger; (4) defendant failed to adequately warn of the danger or instruct

on the safe use of the product; (5) a reasonable

manufacturer/distributor/seller under the same or similar circumstances would

have warned of the danger or instructed on the safe use of the product; (6)

plaintiff was harmed; and (7) defendant's failure to warn or instruct was a

substantial factor in causing plaintiff's harm.

(CACI No. 1222.)

Here, Plaintiffs allege:

128. Defendant Augustine

Temperature Management, LLC designed, manufactured, and supplied the HotDog

U102 patient-warming mattress used during Plaintiff's surgery.

129. Defendant Augustine was

negligent in designing, manufacturing, and supplying the HotDog U102 mattress.

130. Augustine negligently

designed the HotDog U102 mattress without adequate safety features to prevent

overheating when the product was expired, damaged, or when error codes were generated.

131. Augustine negligently

manufactured the HotDog U102 mattress in a manner that allowed it to overheat to dangerous temperatures.

132. Augustine negligently

provided vague and insufficient warnings regarding the risks associated with using an expired or damaged mattress.

133. Plaintiff was harmed by

suffering severe burns to her right thigh.

134. Augustine's negligence

was a substantial factor in causing Plaintiff's harm.

135. Augustine's negligent

design, manufacturing, and warnings directly led to Plaintiff's burn injuries.

(5AC ¶¶ 128-135.) The Court finds that Plaintiffs have

adequately stated a cause of action for negligent failure to warn.

B. LACK OF JURISDICTION – FEDERAL PREEMPTION

Defendant argues that this

Court lacks jurisdiction over the two failure to warn causes of action because

they are preempted by federal law.

Specifically, Defendant argues that medical devices are regulated by the

Federal Food, Drug, and Cosmetic Act ("FDCA"), as amended by the Medical Device

Amendments of 1976 (MDA), which require an involved pre-market approval process. However, an exception to this process, known

as the 510(k) process, allows devices to be sold without the pre-market

approval if the device is substantially equivalent to a "predicate" device that

was already on the market prior to the MDA's enactment. (See *Buckman Co. v. Plaintiffs' Legal*

Comm. (2001) 531 U.S. 341, 344-345.)

Unlike express preemption,

where the legislature has expressly indicated that federal law supersedes state

law (not at issue here), implied conflict preemption exists where it is

impossible for a party to simultaneously comply with both state and federal

requirements or where state law "stands as an obstacle to the accomplishment

and execution of the full purposes and objectives of Congress." (*Sprietsma v. Mercury Maine, a Div. of*

Brunswick Corp. (2002) 537 U.S. 51, 64-65.)

Federal preemption requires

that Congress intend for federal requirements to supersede state law. (*Medtronic, Inc. v. Lohr* (1996) 518

U.S. 470, 485–486 (hereafter *Lohr*).)

The presumption against preemption related to statutory analysis rests

primarily on a "fair understanding of congressional purpose." (*Id.* at p. 485.) Federal statutes do not presumptively

supersede the historic police powers of the states unless it is the clear and

manifest purpose of Congress to do so. (Ibid.) Such statutory analysis looks to the language of the preemption statute in addition to its structure and purpose based on a reasoned understanding of how Congress intended the statute and the regulatory scheme would affect business, consumers, and the law. (Id. at p. 486.)

i.

Implied

Conflict Preemption (Impossibility): Ninth and Tenth Causes of Action – Strict

Product Liability (Failure to Warn); Negligent Product Liability

Impossibility preemption

requires a defendant to prove no independent action could have been taken under federal law to satisfy state law requirements.

(PLIVA, Inc. v. Mensing (2011) 564 U.S. 604, 620; see also Mutual

Pharmaceutical Co. v. Bartlett (2013) 570 U.S. 472, 480.) Regulatory inconvenience does not establish impossibility when a new or special 510(k) could be submitted. (21 U.S.C § 360, subd. (k).)

The Medical Device Amendments

(“MDA”) expressly preempt only those state requirements “different from, or in addition to” any applicable requirement under federal law. (21 U.S.C.S. § 360k, subd. (a).) In Riegel v. Medtronic, Inc., the Supreme Court held that unlike the 510(k) substantial equivalence review analyzed in Medtronic v. Lohr, premarket approval imposes federal requirements focused on safety and effectiveness, thereby triggering MDA

preemption. (*Riegel v. Medtronic*,

Inc. (2008) 552 U.S. 312, 322-323 (hereafter *Riegel*).) When the FDA grants premarket approval to a

Class III device, it conducts a “rigorous” risk-benefit analysis before

concluding the product is safe and effective.

(21 U.S.C. § 360e; *Riegel*, supra, 552 U.S. at pp. 317-318.) No comparable safety determination is made

for 510(k) clearance, which is determined based on substantial equivalence to a

predicate device. (21 U.S.C. § 360,

subd. (k); *Lohr*, supra, 518 U.S. at p. 493.)

Here, Defendant demurs to the

strict product liability failure to warn claim (ninth cause of action) arguing

that any state-imposed obligations for product warnings were preempted by

federal law because the HotDog U210 warming system had FDA 510(k) approval. Defendant claims that it is impossible to

comply with both federal requirements and California laws requiring sufficient

product warnings and because the FDA’s 510(k) approval requires the device be

substantially equivalent to a predicate device, all product warnings must also be

substantially equivalent. Anything to the contrary would, according to

Defendant, deviate from the predicate device enough to harm the “substantially

equivalent” characterization and 510(k) status.

Defendant also demurs to the

negligent products liability claim as it relates only to the “vague and

insufficient warnings regarding the risks associated with using an expired or damaged mattress.” (5AC ¶ 132.) Defendant fails to address the allegations of negligent design due to a lack of adequate safety features in the event of overheating and negligent manufacturing that allowed such overheating to occur.

(5AC ¶ 130-131.)

In support, Defendant cites to

PLIVA, Inc. v. Mensing (2011) 564 U.S. 604, 618-619, which held, in the

context of labeling for generic and brand name drugs, that a state law

requiring safer labels was preempted by federal law, which required generic

drug labels match their corresponding name-brand labels. In so holding, the Supreme Court dismissed

arguments that the defendant could have worked with the FDA to make changes to

the label. (Id. at pp. 620,

623-624.)

In opposition, Plaintiffs cite

to Lohr, supra, 518 U.S. 470 which held:

“State requirements must be ‘with respect to’ medical devices and ‘different

from, or in addition to,’ federal requirements. They must also relate to the

safety or effectiveness of the device or to any other matter included in a

requirement applicable to the device, and the regulations provide that state

requirements of general applicability are pre-empted only where they have the

effect of establishing a substantive requirement for a specific device.” (Id. at p. 500.) Lohr applied a presumption that preemption did not apply, absent an express intent by Congress.

Plaintiffs also cite to Wyeth

v. Levine (2009) 555 U.S. 555, 573 (hereafter Wyeth), where the Supreme Court

rejected impossibility preemption where the drug manufacturer failed to show

that federal law prohibited the stronger state law warning requirement.

In reply, Defendant cites to Riegel,

supra, 552 U.S. at pp. 321, 323-325 which held that the FDA's premarket

approval process for a balloon catheter device established the federal

requirements, and therefore, the plaintiff's state-law claims of negligence,

strict liability, and implied warranty based on state law requirements that

were “different from, or in addition to” the federal requirements related to

safety and effectiveness were expressly preempted under 21 U.S.C. section 360k,

subdivision (a). In so holding, the Supreme

Court distinguished the rigorous Premarket Approval process, which imposes

device-specific requirements sufficient to trigger preemption, from the 510(k)

process. (Id. at pp. 321-322.) The latter process only requires a showing of

substantial equivalence to a predicate device, which neither imposes the same

level of specific federal requirements nor constitutes federal safety review

for purposes of the preemption analysis. (Id. at pp. 322-323.)

Here, construing the 5AC in a

light most favorable to Plaintiffs, as the Court must do on demurrer, the Court

cannot determine on the record before it whether the additional warnings

Plaintiffs urges conflict with the federal government's 510(k) approval process

of the device in question. Such a

determination requires the resolution of factual issues.

Accordingly, the Court overrules

Defendant's demurrer to the ninth and tenth causes of action on federal

impossibility preemption grounds.

ii.

Implied

Conflict Preemption (Obstacle): Ninth and Tenth Causes of Action – Strict

Products Liability (Failure to Warn); Negligent Products Liability

Requiring a medical device

manufacturer to provide adequate warnings about known risks does not generally stand

as an obstacle to congressional purposes; instead, it advances them. (See *Wyeth*, supra, 555 U.S. at p. 574.) In *Wyeth*,

the Supreme Court rejected *Wyeth*'s federal obstacle preemption argument that

compliance with a state-law duty to provide a stronger warning would interfere

with Congress' purpose to entrust the FDA to make drug labeling decisions. (Id. at p. 581.) The Supreme Court construed the evidence of

“Congress’ purposes” as supporting the opposite view: the Federal Food, Drug, and Cosmetic Act

(“FDCA”) establishes only a regulatory floor. (Id. at pp. 574-75.) Further, Congress’ “silence on the issue,

coupled with its certain awareness of the prevalence of state tort litigation”

was strong evidence that the legislature did not intend FDA oversight to be the exclusive means of ensuring

drug safety. (Id. at p. 575.) Thus, Wyeth’s state-law failure to

warn claims were not an obstacle to the accomplishment of Congress’s purpose for

the FDCA. (Id. at p. 581.)

Defendant argues that

Plaintiffs’ proposed warnings are an obstacle to accomplishing and executing

the full purposes and objectives of Congress.

Defendant relies on *Buckman*

Co. v. Plaintiffs’ Legal Comm., arguing that the theory behind implied preemption

of “fraud-on-the-FDA” claims should be applied to state-law failure to warn

claims at hand. (Demurrer at 9:9-22; *Buckman*

Co. v. Plaintiffs’ Legal Comm. (2001) 531 U.S. 341, 347 (hereafter *Buckman*).)

In *Buckman*, plaintiffs

alleged that a bone screw manufacturer had made fraudulent misrepresentations

to the FDA about the intended use of the device during the 510(k) clearance

process. (*Buckman*, *supra*,

531 U.S. at pp. 346-347.) The

Supreme Court held that state-law fraud-on-the-FDA claims were impliedly preempted because they conflicted with Congress's intent that the Medical Devices Amendments "be enforced exclusively by the Federal Government." (Id. at pp. 348, 352.) The Supreme Court reasoned that no presumption against preemption applied because policing fraud against federal agencies is not a field "which the States have traditionally occupied." (Id. at p. 347.) Rather, "the federal statutory scheme amply empowers the FDA to punish and deter fraud against the Agency," and state tort suits threatening that scheme would conflict with the Agency's authority "to achieve a somewhat delicate balance of statutory objectives." (Id. at p. 348.) However, the Supreme Court distinguished fraud-on-the-FDA claims existing solely by virtue of the federal regulatory relationship from traditional state tort claims such as those arising from a manufacturer's alleged failure to use reasonable care in production, independently of FDCA requirements. (Id. at p. 352.)

Here, as discussed above, requiring Defendant to provide adequate warnings about the risks of using an expired or damaged device does not necessarily stand as an obstacle to any congressional objective. Rather, it may advance the safety purposes of the FDCA and MDA.

Moreover, Plaintiffs' failure to warn claims do not allege fraud on a federal agency or arise from Defendant's

disclosures to the FDA. While Buckman

notes that requirements on companies to simultaneously satisfy

individualized state tort regimes alongside FDA requirements creates burdens

“not contemplated by Congress” (Buckman, *supra*, 551 U.S. at p.

350) whether the state-mandated warnings actually conflict with Augustine’s

510(k) obligations is not apparent from the face of the pleadings. That determination requires the resolution of

factual issues not properly considered on a demurrer.

Accordingly, the Court similarly

overrules Defendant’s demurrer to the ninth and tenth causes of action on

federal obstacle preemption grounds.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules

Defendant Augustine Temperature Management, LLC’s demurrer to the seventh,

ninth, and tenth causes of action of the 5AC.

Defendant shall file and serve an

answer to the 5AC on or before July 9, 2026.

Defendant

shall also provide notice of the Court’s ruling and file the notice with a

proof of service forthwith.

DATED: June 25, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court